including the last two, namely ‘a collection of individuals classed together under the same name’ and ‘*now almost always specifically a religious sect or body having a common faith and organisation and designated by a distinctive name*’, which were separated by a semicolon, the Supreme Court relied on the Oxford version which defined it as ‘*a collection of individuals classed together under the same name: a religious sect or body having a common faith and Organisation and designated by a distinctive name’*, which connected the two parts with a colon.[17] This difference in punctuation has made a world of difference, since the Supreme Court appears to have latched on to the narrower definition which, apart from being Christian-inspired, has effectively truncated the group rights of Dharmic sampradayas. It remains to be seen if such issues of colonial linguistics/semantics receive due attention from the Supreme Court in pending matters of civilisational/Dharmic importance.

What emerges from a reading of the Shirur Math Judgment along with the judgments in *Shastri Yagnapurushdasji* and *Bramchari Sidheswar Bhai* is a curious mixture wherein the colonial framework enmeshes with a partly colonial and partly decolonial understanding of native/Indic OET systems. As stated earlier, whether or not this duality has its genesis in the Constitution and its making will be examined in the sequel to this book in greater detail.

The other colonial attitude that the Indian State appears to have embraced is the need to codify and systematise indigenous ‘personal laws’ in order to make them ‘uniform’ and ‘consistent’, in the process ossifying and centralising them. The ‘Hindu Code’ legislations passed between 1955 and 1956, which resulted in the Hindu Marriage Act, Hindu Succession Act, Hindu Minority and Guardianship Act, and Hindu Adoptions and Maintenance Act, are cases in point. In the process of this codification, the Indian State, which presides over a civilisational society that values context, subjectivity and custom, has stifled the evolution of custom at the altar of uniformity, homogeneity and codification.

This was highlighted and analysed powerfully by Dr. Madhu Kishwar in her article titled ‘Codified Hindu Law: Myth and Reality’.[18] Dr. Kishwar captured brilliantly the colonial obsession with codification of ‘Hindu law’, which the first government of independent Bharat under Jawaharlal Nehru, ably aided by Dr. Ambedkar’s earlier work on the subject, took forward with the zeal of a new convert. Here are a few instructive excerpts from her